

BEFORE THE  
FEDERAL MARITIME COMMISSION

---

FMC DOCKET NO. 21-10

---

ORANGE AVENUE EXPRESS, INC.  
Complainant,

v.

HAPAG LLOYD AG  
Respondent.

---

**JOINT MOTION FOR ENTRY OF CONFIDENTIALITY AGREEMENT AND  
PROTECTIVE ORDER**

Complainant Orange Avenue Express, Inc. (“OAE”) and Respondent Hapag-Lloyd, AG (Hapag) hereby move the Commission to enter the Confidentiality Agreement and Protective Order executed by the Parties and attached hereto as Attachment A. The Parties have jointly drafted the attached and agree to be bound by all of the terms contained therein.

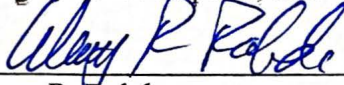
WHEREFORE, the Parties request that the Commission grant this motion for entry of the submitted Confidentiality Agreement and Protective Order.

Date: March 10, 2022

Respectfully submitted,

---

Stephen M. Uthoff  
The Uthoff Law Corporation  
111 W. Ocean Blvd., Suite 1960  
Long Beach, California 90802  
t. 562-437-4301  
f. 562-437-4341  
[suthoff@uthofflaw.com](mailto:suthoff@uthofflaw.com)  
Attorneys for Complainant,  
Orange Avenue Express, Inc.



---

Wayne R. Rohde  
Joshua P. Stein  
COZEN O'CONNOR  
1200 Nineteenth Street, NW  
Suite 300  
Washington, DC 20036  
[wrohde@cozen.com](mailto:wrohde@cozen.com); [jstein@cozen.com](mailto:jstein@cozen.com)  
(202) 463-2504  
Attorneys for Respondent  
Hapag-Lloyd, AG

Date: March 10, 2022

Respectfully submitted,



---

Stephen M. Uthoff  
The Uthoff Law Corporation  
111 W. Ocean Blvd., Suite 1960  
Long Beach, California 90802  
t. 562-437-4301  
f. 562-437-4341  
[suthoff@uthofflaw.com](mailto:suthoff@uthofflaw.com)  
Attorneys for Complainant,  
Orange Avenue Express, Inc.

---

Wayne R. Rohde  
Joshua P. Stein  
COZEN O'CONNOR  
1200 Nineteenth Street, NW  
Suite 300  
Washington, DC 20036  
[wrohde@cozen.com](mailto:wrohde@cozen.com); [jstein@cozen.com](mailto:jstein@cozen.com)  
(202) 463-2504  
Attorneys for Respondent  
Hapag-Lloyd, AG

**CERTIFICATE OF SERVICE**

I hereby certify that on March 11, 2022, the foregoing JOINT MOTION FOR ENTRY OF CONFIDENTIALITY AGREEMENT AND PROTECTIVE ORDER has been served upon all interested persons and parties by electronic means pursuant to the below list.

  
Stephen M. Uthoff

**Counsel for Respondents Hapag-Lloyd, A.G.**

Jeffrey F. Lawrence

Wayne R. Rohde

Joshua P. Stein

COZEN O'CONNOR

1200 Nineteenth Street, NW, Suite 300

Washington, DC 20036

Telephone: (202) 463-2504

Emails: [jlawrence@cozen.com](mailto:jlawrence@cozen.com); [wrohde@cozen.com](mailto:wrohde@cozen.com); [jstein@cozen.com](mailto:jstein@cozen.com)

**Presiding Administrative Law Judge**

Erin M. Wirth, Chief Administrative Law Judge

Office of Administrative Law Judges

Federal Maritime Commission

800 N. Capitol St., N.W.

Washington D.C. 20573-0001

[judges@fmc.gov](mailto:judges@fmc.gov)

BEFORE THE  
FEDERAL MARITIME COMMISSION

---

FMC DOCKET NO. 21-10

---

ORANGE AVENUE EXPRESS, INC.  
Complainant,

v.

HAPAG LLOYD AG  
Respondent.

---

**CONFIDENTIALITY AGREEMENT AND [PROPOSED] PROTECTIVE ORDER**

This Stipulated Confidentiality Agreement and Protective Order (“Confidentiality Agreement and Protective Order” or “Agreement”) is entered into by and between Complainant Orange Avenue Express, Inc. (“OAE”) and Respondent Hapag-Lloyd, AG (Hapag). OAE and Hapag are referred to collectively herein as the “parties,” or individually as a “party.”

IT IS HEREBY STIPULATED AND AGREED by and among OAE and Hapag that the Presiding Officer may enter the following order:

1. This Confidentiality Agreement and Protective Order shall govern the production, use and handling of confidential, non-public documents and information (“Confidential Information” as defined below) produced in any form in the above-captioned proceeding now pending before the Federal Maritime Commission styled as *Orange Avenue Express, Inc. v. Hapag Lloyd, AG*, Docket no. 21-10 (the “Proceeding”). “Confidential Information” includes proprietary or sensitive information, including but not limited to trade secrets, confidential research

development or commercial information, private personnel data, personal information such as social security numbers, medical information and medical records, revenues, profits and losses, proprietary customer information (including prospect lists, rates, strategy and details), market strategy, audits, any other non-public financial and proprietary data which may be subject to protection; and any summaries, copies, abstracts or other information derived in whole or in part therefrom if so designated. Confidential Information shall not include information which is or becomes available in the public domain (other than through unauthorized disclosure by the receiving party); any information previously disclosed to the receiving party unrelated to the Proceeding; information, confidential or otherwise not previously kept confidential by the designating party; information disclosed or made available at any time to the receiving party by a third party without restriction and without breach of this Agreement; information independently developed by the receiving party where the receiving party establishes that such development was accomplished without access to the Confidential Information of the disclosing party; or information which is known at the time of disclosure and is was not subject to restriction. Such Confidential Information may have been included in documents produced in the Proceeding or the events leading to the Proceeding to date. The restrictions on the use of Confidential Information established by this Agreement are applicable only to the use of Confidential Information received during or related to the Proceeding by a party from another party. A party may designate information as Confidential Information even if provided to the receiving party prior to the commencement of the Proceeding provided it was disclosed during the events leading up to the filing of the Complaint herein. Confidential Information may include information originating or concerning a party's affiliates. A party is free to do whatever it desires with its own information, confidential or otherwise.

2. Each party may designate in good faith, documents, materials, things, constituting Confidential Information by placing a “Confidential” stamp on each page containing any Confidential Information. If only a portion or portions of the material qualify as Confidential Information, the designating party must clearly identify the protected portion. If a party does not designate any document or thing Confidential, then that document or thing shall not be subject to the terms of this Agreement even if it contains or otherwise constitutes Confidential Information.

3. All parties agree that testimony may be designated as Confidential Information by making a statement to that effect on the record at the deposition or other proceeding.

a. Any party or person giving testimony in these proceedings in a deposition may designate that a portion of his or her testimony deemed to be Confidential Information by advising the reporter of such fact at the time of the deposition. Arrangements may be made with the court reporter taking and transcribing such proceeding, if any, to separately bind such portions of the transcript containing information designated as Confidential Information and to mark each page of such portions “Confidential.”

b. Deposition transcripts or portions thereof may also be designated as Confidential Information after the conclusion of a deposition by the marking of a copy of the transcript by the deponent or their counsel while the deposition transcript is under review by the deponent but before the original signed transcript is delivered to the deposing party or the time to sign the transcript has expired.

c. Where testimony is designated as Confidential Information during a deposition, only parties listed in Paragraph 6 below may be present for the Confidential portions of the deposition.

d. Any party may mark Confidential Information as a deposition exhibit and examine any witness thereon, provided that (a) the exhibit and related transcript pages receive the same confidentiality designation as the original Confidential Information.

4. Confidential Information subject to this Agreement shall be used solely for the prosecution, defense and/or appeal of the Proceeding, and shall not be used by anyone, other than by the party that produced it, for any other reason.

5. Confidential Information shall not be shown, revealed, released, disclosed, or communicated in any way to any person, except those listed in Paragraph 6, without the advance written authorization of the party that produced it. The parties may request appropriate special proceedings if such materials are introduced at any hearing on the Proceeding.

6. Confidential Information may only be disclosed to the following persons:

a. The judge, presiding officer or trier-of-fact before whom the Proceeding is pending and his or her personnel, and, if necessary, an appellate court, court of enforcement hereof and the court personnel;

b. Attorneys of record for the parties to the Proceeding, now or in the future, their respective associates, partners, clerks, paralegals, legal assistants, secretaries, associated or contracted attorneys, and other support staff who are actively engaged in assisting such Attorneys in the prosecution or defense of this Proceeding. All such persons are deemed to have been informed as to the contents of this Confidentiality Agreement and Protective Order and acknowledges that he or she agrees to be bound by its terms;

c. The parties to the Proceeding, now or in the future, including their in-house counsel, directors, officers, managers and employees, or their insurers and claims adjusters, parties shall be deemed to include affiliates of the parties within the OAE and Hapag

corporate families. The parties, as defined herein, shall be deemed to have been informed of the Confidentiality Agreement and have agreed to be bound hereby.

d. Experts retained or consulted by any party or their counsel as required to assist in the conduct of the Proceeding, as well as the secretarial and clerical staffs to such experts, provided that any such expert is provided with a copy of this Confidentiality Agreement and Protective Order and acknowledges in writing that he or she agrees to be bound by its terms;

e. Service providers, including outside copying services, court reporters, and videographers, retained by a party's counsel to assist such counsel in connection with this Proceeding, provided that any such person is informed as to the contents of this Confidentiality Agreement and Protective Order; and

f. Any person acting as a mediator in or for the Proceeding and his or her staff.

g. Federal Maritime Commission, staff and employees.

Notwithstanding the foregoing, disclosure of Confidential Information shall not be precluded if such disclosure is in response to a valid order of a court or other governmental body or is otherwise required to be disclosed by law, provided that the recipient of the Confidential Information shall, where practical, first give written notice to the person on whose behalf the Confidential Information was disclosed to allow that person to seek an appropriate protective order. Further nothing herein shall prevent the disclosing party from removing the Confidential designation for any document or information upon notice to the receiving party.

7. Except as otherwise provided for herein, every person given access to Confidential Information pursuant to section 6(d), (e) and (f) shall: (a) be informed of this Confidentiality Agreement and Protective Order, (b) be informed that they must comply with this Confidentiality

Agreement and Protective Order, and (c) agree in writing to comply with this Confidentiality Agreement and Protective Order by signing the Acknowledgement and Agreement to Be Bound, attached as Exhibit A or has otherwise agreed in writing to be bound by this Agreement. A signature on behalf of any business or entity shall be deemed binding on behalf of that business or entity's employees, assigns, contractors and agents. Confidential Information disclosed to such persons shall be used solely for the purposes of litigation in connection with this Proceeding and shall not be used for any commercial purpose.

8. Confidential Information disclosed to the Commission or Presiding Officer in any document, filing or exhibit shall be labeled in accordance with 46 CFR §502.5. The provisions of this Agreement shall govern discovery, disclosure and the parties' conduct, but shall not affect the ability of the Presiding Officer to order appropriate procedures for the use and production of Confidential Information at or during any hearing including modification of any such orders. If the document containing the Confidential Information was produced by the party offering it as an exhibit or attachment, that party may redact the Confidential Information instead of filing it under seal if the redaction does not materially detract from the substance of the document. Notwithstanding any of the forgoing, motions, briefs, memoranda, declarations, or other papers may paraphrase or summarize Confidential Information without being filed under seal, so long as such paraphrasing is done in such a manner as to maintain the confidential nature of the material.

9. Any party may object to the designation of information as Confidential Information by serving a written objection upon the designating party. The designating party shall notify the objecting party in writing of the basis for the asserted designation within ten (10) calendar days after receiving any written objection. The parties shall confer in good faith as to the validity of the designation within ten (10) calendar days after the objecting party has received the notice of

the basis for the asserted designation. The designating party has the burden to file a motion with the Commission for an order permitting such a designation within fifteen (15) court days after conferring with the objecting party to the extent the parties are unable to reach an agreement as to the designation. Failure by the designating party to make an application within this fifteen (15) day period (or such later times as the parties may agree) constitutes a waiver of such designation. Pending a ruling by the Presiding Officer on any application filed under this section, the parties shall treat the disputed information in question as Confidential Information.

10. Counsel for the parties shall serve a true and complete copy of this Confidentiality Agreement and Protective Order on any non-party, or their counsel, on whom a discovery subpoena is issued.

11. The parties may provide for exceptions to this Confidentiality Agreement and Protective Order, to be memorialized in writing, and any party may seek an order of this tribunal modifying this Confidentiality Agreement and Protective Order upon a showing of good cause. The parties agree that they will confer in good faith and attempt to resolve the issue of any such modification amongst themselves before seeking judicial intervention.

12. Counsel for the parties will make all reasonable efforts to safeguard all Confidential Information and shall promptly notify the designating party of any unauthorized disclosure or access to Confidential Information. If a party is served with a subpoena or a court order issued in other litigation that compels disclosure of any Confidential Information, the party must:

- a. Give prompt written notice to the designating party, including a copy of the subpoena or court order;
- b. Give prompt written notice to the party in the other litigation who caused the subpoena or other court order to be issued that some or all of the material covered by

the subpoena or court order is subject to this Confidentiality Agreement and Protective Order, and attach a copy of this Confidentiality Agreement and Protective Order;

c. Cooperate with respect to all reasonable procedures sought to be pursued by the designating party whom Confidential Information may be affected; and

d. If the designating party timely seeks a protective order, the party served with the subpoena or court order shall not produce any Confidential Information before a determination by the court from which the subpoena or order issued, unless the party has obtained the designating party's written permission. However, in no instance is the party obligated to violate any court or administrative order or law in withholding Confidential Information.

13. This Confidentiality Agreement and Protective Order shall continue to be binding throughout this Proceeding and after its conclusion, and the Commission and/or Presiding Officer shall retain jurisdiction to resolve any dispute concerning the use of Confidential Information disclosed pursuant to this Confidentiality Agreement and Protective Order. The final determination of this Proceeding shall not relieve any person to whom Confidential Information has been disclosed from the obligation of maintaining the confidentiality of such information set forth herein. The parties agree to be bound by this Confidentiality Agreement and Protective Order from the date of their respective signatures as set forth below.

14. Unless otherwise ordered or agreed in writing by the Producing Party, within sixty (60) days after the final termination of this action up to and including full satisfaction of any judgment or dismissal of the entire action as the case may be, each Receiving Party must return all Protected Material to the Producing Party, or certify its destruction. As used in this sub-division, all "Protected Material" includes all copies, abstracts, compilations, summaries or any other form

of reproducing or capturing any of the Confidential Information. Upon notice in writing from the Receiving Party to the Designating Party, the Receiving Party may destroy some or all of the Protected Material instead of returning it. Whether the Protected Material is returned or destroyed, the Receiving Party must submit a written certification to the Producing Party (and, if not the same person or entity, to the Designating Party) by the sixty (60) day deadline that identifies (by category, where appropriate) all the Protected Material that was returned or destroyed and that affirms that the Receiving Party has not retained any copies, abstracts, compilations, summaries or other forms of reproducing or capturing any of the Protected Material. Notwithstanding this provision, Counsel are entitled to retain an archival copy of its file for this litigation, including materials that contain Protected Material. In addition, to the extent any party is required by law to maintain a copy of any Protected Material produced in discovery of this Proceeding, that party may likewise retain an archival copy of any such Protected Material. Any such archival copies that contain or constitute Protected Material shall remain subject to this Confidentiality Agreement and Protective Order and may be destroyed pursuant to the receiving party's document retention program.

15. Nothing herein shall operate as a waiver of the right of any party to object on any ground to the admissibility of any Confidential Information in connection with any motions or at the time of trial. Nothing in this Confidentiality Agreement and Protective Order shall be deemed to preclude the parties from refusing to produce confidential documents on any grounds including but not limited to refusals to produce documents and other discovery relating to any privilege or any other applicable objection.

16. This Confidentiality Agreement and Protective Order may be signed by the parties in counterparts. An emailed, faxed or digital signature shall be as valid as an original ink signature.

Date: March 10, 2022

Respectfully submitted,

A handwritten signature in black ink, appearing to be 'S. Uthoff', written over a horizontal line.

Stephen M. Uthoff  
The Uthoff Law Corporation  
111 W. Ocean Blvd., Suite 1960  
Long Beach, California 90802  
t. 562-437-4301  
f. 562-437-4341  
[suthoff@uthofflaw.com](mailto:suthoff@uthofflaw.com)  
Attorneys for Complainant,  
Orange Avenue Express, Inc.

---

Wayne R. Rohde  
Joshua P. Stein  
COZEN O'CONNOR  
1200 Nineteenth Street, NW  
Suite 300  
Washington, DC 20036  
[wrohde@cozen.com](mailto:wrohde@cozen.com); [jstein@cozen.com](mailto:jstein@cozen.com)  
(202) 463-2504  
Attorneys for Respondent  
Hapag-Lloyd, AG

Date: March 10, 2022

Respectfully submitted,

---

Stephen M. Uthoff  
The Uthoff Law Corporation  
111 W. Ocean Blvd., Suite 1960  
Long Beach, California 90802  
t. 562-437-4301  
f. 562-437-4341  
[suthoff@uthofflaw.com](mailto:suthoff@uthofflaw.com)  
Attorneys for Complainant,  
Orange Avenue Express, Inc.



---

Wayne R. Rohde  
Joshua P. Stein  
COZEN O'CONNOR  
1200 Nineteenth Street, NW  
Suite 300  
Washington, DC 20036  
[wrohde@cozen.com](mailto:wrohde@cozen.com); [jstein@cozen.com](mailto:jstein@cozen.com)  
(202) 463-2504  
Attorneys for Respondent  
Hapag-Lloyd, AG

**EXHIBIT A**  
**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND**

I, \_\_\_\_\_ [print or type full name], of  
\_\_\_\_\_ [print or type full  
address], declare under penalty of perjury that I have read in its entirety and understand the  
Confidentiality Agreement and Protective Order (“Confidentiality Agreement and Protective  
Order”) that was entered into and issued in Federal Maritime Commission Docket 21-10. I agree  
to comply with and to be bound by all the terms of this Confidentiality Agreement and Protective  
Order and I understand and acknowledge that failure to so comply could expose me to sanctions  
and punishment in the nature of contempt. I further agree to submit to the jurisdiction of the  
Federal Maritime Commission, in proceeding docket 21-10 or any court of competent jurisdiction  
for the purpose of enforcing the terms of this Confidentiality Agreement and Protective Order,  
even if such enforcement proceedings occur after termination of this Proceeding.

Date: \_\_\_\_\_

Printed name: \_\_\_\_\_

Signature: \_\_\_\_\_